

26NWCV01166 26NWCV01166

County: los-angeles

Division: Civil Law and Motion

Department: L

Hearing date: 2026-09-17

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Case Number: 26NWCV01166 Hearing Date: September 17, 2026 Dept: L

ALTERO, INC. vs ADAM LUJAN GREENFIELD, et al.

CASE NO.: 26NWCV01166

HEARING: September 17, 2026 @ 9:30 a.m.

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TENTATIVE ORDER

Plaintiff Altero, Inc.'s Motion to

Consolidate is CONTINUED to November 5, 2026 at 9:30 a.m. in Dept. L.

Plaintiff to give notice.

Background

This is a commercial unlawful detainer

action regarding 6020-6034 Atlantic Blvd., Maywood, CA 90270 ("Property"). On April 2, 2026, Plaintiff Altero, Inc. ("Plaintiff") filed this action against Defendants Adam Lujan Greenfield, Adam's Studio, All Unknown Occupants, Tenants, and Subtenants, and Does 1 to 20.

On May 4, 2026, default was entered as to Defendant Adam Lujan Greenfield.

On August 8, 2026, the Court reviewed and granted Plaintiff's Notice of Related Cases as to LASC Case Nos. 26NWCV01167,

26NWCV01169, 26NWCV01172, 26NWCV01176, and 26NWCV01177.

Plaintiff now moves to consolidate this action with all related actions by Plaintiff against Defendants Adam Lujan Greenfield and All Unknown Occupants, Tenants, and Subtenants of the Property (hereinafter, "Defendants")—specifically, LASC Case Nos. 26NWCV01167, 26NWCV01169, 26NWCV01172, 26NWCV01176, and 26NWCV01177.

On August 19, 2026, the hearing on this Motion was advanced from October 8, 2026 to today's date. (8/19/26 Minute Order.)

Requests for Judicial Notice

Plaintiff's Requests for Judicial Notice are granted as to Exhibits 1 to 10.

Legal Standard

Code of Civil Procedure section 1048, subdivision (a) states the following: "When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." (Code Civ. Proc., § 1048, subd. (a).)

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California Rules of Court, rule 3.350, subdivision (a), states the following:

"(1) a notice of motion to consolidate must:

(A) List all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record;

(B) Contain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first; and

(C) Be filed in
each case sought to be consolidated.

(2) The motion to consolidate:

(A) Is deemed a
single motion for the purpose of determining the appropriate filing fee, but
memorandums, declarations, and other supporting papers must be filed only in
the lowest numbered case;

(B) Must be served
on all attorneys of record and all non-represented parties in all of the cases
sought to be consolidated; and

(C) Must have a
proof of service filed as part of the motion.¿”

Discussion

Plaintiff has filed six post-foreclosure
unlawful detainer actions against Defendants regarding six units in the
Property. The other cases are LASC Case Nos. 26NWCV01167, 26NWCV01169,
26NWCV01172, 26NWCV01176, and 26NWCV01177. Plaintiff explains that it purchased
the Property at a trustee’s sale, in which Plaintiff was issued three Trustee’s
Deeds Upon Sale for the parcels upon which the Property sits. (RJN, Exhs. 2-4.)
Defendants thereafter failed to vacate the Property, and thus, Plaintiff
initiated these unlawful detainer actions. Plaintiff now moves to consolidate
the six related actions so Department L may “summarily proceed with the
unlawful detainer actions involving the same parties and the same facts, which
are entitled to preference.” (Mot., 2:8-9.)

Requirements of California Rules of Court, Rule 3.350

In the Notice of Motion to Consolidate,
Plaintiff has listed all named parties in each case, the names of those who
have appeared, and the names of their respective attorneys of record, in
addition to the Department and case number. The Notice of Motion and Motion to
Consolidate was served on Defendant Greenfield, as defendant to all cases. (See
POS.)

However, the Court finds that the Notice of Motion to Consolidate was not filed in each related case pursuant to California Rules of Court, Rule 3.350(a)(1)(C) . Specifically, no Notice of Motion was filed in LASC Case No. 26NWCV01167, 26NWCV01169, 26NWCV01172, 26NWCV01176, and 26NWCV01177.

The Court therefore finds that the procedural requirements for a motion to consolidate have not been met. The Court will thus continue the Motion to allow Plaintiff to correct the deficiency.

Accordingly, Plaintiff's Motion to Consolidate is continued to November 5, 2026 at 9:30 a.m. in Dept. L.

Plaintiff is to file an amended Notice of Motion in each related case and this case reflecting the continued date and to serve such amended Notice to Defendants. The Notice of Motion must be filed at least 5 calendar days prior to the hearing, or the Motion will be taken off-calendar.